

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

October 25, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Pierson, and Mr. Spiker. Absent: Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 11, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on October 18, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry, Mayor Kaysen, City Treasurer Barb Dorr and Planning Services Director Matt Ashby provided information available pertaining to a purchase of an Apple iPad, iTunes for software applications, case, and protection plan in the amount of \$691.01 included in a voucher payable to VISA/UMB. It was noted the purchase was made by the Metropolitan Planning Organization (MPO) with federal funding and that the equipment, which provides more flexibility and portability than a laptop computer, and software will be utilized for the MPO on-site Employment Data Collection Project. Dr. Rinne moved to divide the question to allow for separate action on the purchase of the iTunes component in the amount of \$54.01, seconded by Ms. Ash. Motion carried. Voting "yes" – all members of the governing body present. Dr. Rinne moved to postpone action on the payment of \$54.01 for iTunes for one week (to Nov. 1, 2010), seconded by Ms. Ash. Comments followed regarding the purpose of the iPad purchase and what applications software was acquired through iTunes. Ms. Dorr advised of payment time frame options relative to the vendor's invoice due date, and Mr. Ashby clarified that he had confirmed with the MPO Director that the programs downloaded via iTunes involved word processing, spreadsheets and presentation programs. Motion to postpone failed. Voting "yes" – Ms. Ash, Dr. Rinne and Mr. Spiker. Voting "no" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, and Mayor Kaysen. Mr. Collins moved to approve payment of the Apple iTunes portion of the purchase order, seconded by Mr. Brown. Discussion followed on the purpose and necessity of purchasing an iPad and affiliated software items. Motion to approve carried. Voting "yes" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, and Mayor Kaysen. Voting "no" – Ms. Ash, Dr. Rinne and Mr. Spiker. Discussion on remaining vouchers followed. Upon inquiry regarding a voucher payable to Service First Carpet Cleaning (\$450.00), carpet cleaning at Taco John's Event Center (TJEC) due to smoke

damage resulting from the fire at the Hitching Post Inn and whether the cost might be recoverable through insurance, City Attorney Dan White advised a claim could be asserted and stated the matter is being researched with regard to potential coverage through the Hitching Post's insurance carrier. Upon inquiry whether any other damage was incurred due to the fire, Rick Parish, Parks and Recreation Director, advised there was a lot of external debris due to flooding in the parking lot from fire extinguishing efforts and indicated he had compiled a list and submitted it to the Mayor for possible recouping of clean-up expenses through insurance. Regarding inquiry on a refund for products ordered from Howies that were never shipped by the company, Ms. Dorr explained this was a pre-charge expense placed on a City credit purchasing card and since the item was not received the company issued a credit in the amount of \$126.67. Motion to approve remaining vouchers carried. Voting "yes" – all members of the governing body present with the exception of Dr. Rinne voting "no".

Mayor Kaysen opened a public hearing for a transfer of ownership for a restaurant liquor license application filed with the City Clerk's Office for Soo Hyun Choi, LLC d/b/a Tokyo Bowl, 1829 Dell Range Boulevard, Cheyenne, WY. (License currently held by Iron Chefs, Inc. d/b/a Tokyo Bowl, 1829 Dell Range Boulevard, Cheyenne, WY.) Upon inquiry, City Clerk Carol Intlekofer clarified new owners of the business are requesting the transfer of ownership and explained there is no change to the existing alcohol dispensing room. There being no further comments or discussion and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the application to the Finance Committee.

"An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in the SW1/4 of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (generally located north of Pershing Boulevard, between Whitney Road and Christensen Road)" -- referred to Public Services Committee (sponsor - Ms. Ash).

"A Resolution re-appropriating the fiscal year 2011 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113." Upon query to members of the governing body by Mayor Kaysen regarding a brief statement he wished to make concerning the re-appropriation, and there being no objection raised, Mayor Kaysen provided information on a proposed employee recognition payment included in the re-appropriation. He explained the intent was to recognize full-time employees for their efforts this past calendar year and stated the payment was not intended to include the Mayor or members of the governing body. Mayor Kaysen noted other items included in the proposed re-appropriation and concluded his statement by indicating he would have no objection if the employee recognition payment was not part of the re-appropriation. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute, seconded by Mr. Collins. Mr. Brown clarified the substitute removes the line item for the employee recognition payment, which will change the total re-appropriation amount. Planning Services Director Matt Ashby, Public Works Director Jim Elias, City Treasurer Barb Dorr and Mayor Kaysen provided information in response to inquiry and discussion that included the following topics: Request for an additional planner position in the Building/Development Office to assist with increased workload involving building permits and site plans; staff reductions, reorganization and reassignment of duties in several City departments due to the reduction in workforce and voluntary early retirements occurring earlier in the year; effect of reduced staffing levels on customer service, maintenance of fleet vehicles and equipment (safety) and high volume areas (sanitation, street and alley); part-

time employment services being received by the Public Works Department by a former director of the department; staff reassignments made to assist with coverage; outsourcing of certain Fleet Maintenance repair services and changes to the division's preventative vehicles/equipment maintenance schedules; re-appropriation line item involving juvenile justice grants; staffing levels and review of same prior to and during the Fiscal Year 2011-2012 budget process; time frame involved in the deferred \$1,000,000 payment to the Board of Public Utilities, and administrative process utilized when determining whether to fill a vacated staff position. Motion to amend carried. Voting "yes" – all members of the governing body present. Additional comment of concern was made regarding staffing levels. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present. (#5247)

"A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Lumber, a replat of vacated portions of Lots 3, 4 & 5, Block 29; and Lots 1 & 2, Block 30; and McComb Avenue, Original City of Cheyenne; and a portion of Lot 3, Section 36, T.14N., R.67W., 6th P.M., Cheyenne, Wyoming (located at the northwest corner of the intersection of Cribbon Avenue and W. 27th Street)." Reporting for Public Services Committee, Ms. Ash moved to adopt with staff recommendations #1 through 4, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present. (#5248)

"A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 8th Filing, situated in a portion of the SW¼ NW¼ of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Ogden Road, between Apache Street and Plain View Road)." Kelly Hafner, Benchmark Engineers, advised he was involved with investigating drainage issues for the developer, United Western Corporation, affiliated with the project, and submitted a map diagram (on file with City Clerk's office) depicting a proposed regional detention facility for the area. Mr. Hafner referenced recommendations relative to the preliminary plat; reviewed areas contained in the map diagram, and proposed consideration of a regional drainage detention facility vs. small pocket detention area(s). He discussed constraints of the area based on his research of drainage flow direction, topography and run-off volumes, and the difficulty of extending Plainview Road to Converse Ave. due to drainage flows and City water main issues; explained logistics involving a regional facility vs. multiple smaller detention ponds, and noted affiliated maintenance responsibility issues. Discussion included the following topics: Potential interim detention lot, depicted as Lot 10, Block 11 on the plat map, and developer construction options; run-off volumes draining into the City storm sewer system; issues and concerns involving the proposed regional detention facility, which would currently include property in the county (not within City limits) over small pocket areas; physical characteristics of Lot 10, Block 11; improvements to drainage system, and extension of Plainview Road to Converse Ave. Frank Cole, United Western Corporation, developer, provided information on water drainage in the area; cited other development projects involving drainage issues, and stated as development to the north advances the intent would be for the area to be annexed. Doug Vetter, City Engineer, stated the recommendation of development staff is that Lot 10, Block 11 be reserved for drainage on the final plat; not necessarily dedicated as drainage. He noted potential concerns with the location and design of the regional facility, and preclusion of the extension of Plainview Road which could affect the area's transportation network. Ms. Ash moved to adopt, seconded by Mr. Collins. Ms. Ash moved to postpone for two weeks (to Nov. 8, 2010), seconded by Mr. Collins. It was advised the postponement would allow for continuing discussion on future road connectivity and drainage. Comments followed regarding

drainage and Plainview Road extension concerns; reserve vs. dedicate Lot 10, Block 11 for drainage; detention area(s) maintenance responsibility, and small local detention areas generally. Upon inquiry, City Attorney Dan White explained the recommendation noted by Mr. Vetter is being requested to be placed on the plat to ensure drainage issues for this specific plat are addressed by reserving the lot for detention purposes. He added that the developer may desire to retain the lot in private ownership and that the City's intent is to reserve the lot, not dedicate it to the City. Mr. Cole stated his advocacy for a regional detention pond to be maintained by the City, and noted liability risks to property owners involving ownership of small detention pond areas. He spoke in opposition to the staff recommendation to "tag" Lot 10, Block 11 as reserved and stated his intention is not to even use Lot 10 for drainage. Comments followed in support of regional detention ponds, connectivity of east-west roads for future use, local elementary school traffic, and problems with incremental developments. Motion to postpone failed. Voting "yes" – Dr. Rinne. Voting "no" – Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Spiker and Mayor Kaysen. Mr. Collins moved to amend to include staff recommendation #1, seconded by Mr. Brown, which reads: "Indicate Lot 10, Block 11 as an area reserved for storm water detention on final plat map". Discussion followed on a regional detention facility vs. interim local detention ponds; potential route alternatives to provide connector street to Converse Ave.; physical natural depth of Lot 10, Block 11 relative to drainage use; proximity of detention facility/pond(s) to an elementary school in the area and concerns with traffic and safety of students; use of Lot 10, Block 11 for drainage during plat development; need for future discussion regarding the regional detention facility, and unattractiveness of local detention areas. During discussion on alternate routes to extend street traffic to Converse Ave., Mr. Cole provided information concerning the Water Tank Bluff street area. Upon inquiry, Mr. Hafner, provided information on the depth of Lot 10, Block 11, and size of the proposed regional detention facility, stating it would be a "bare minimal size" with a gravity drain system. Motion to amend with staff recommendation #1 carried. Voting "yes" – all members of the governing body present with the exception of Ms. Ash, Ms. Broyles, Dr. Rinne and Mayor Kaysen voting "no". Upon inquiry concerning whether a barrier or fencing of side slopes of Lot 10, Block 11 would be installed, Mr. Hafner stated the side slopes do not require a barrier, and at this time no barrier or fencing is planned and the area would be open. Main motion as amended carried. Voting "yes" – all members of the governing body present with the exception of Dr. Rinne and Mayor Kaysen voting "no". (#5249)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, for juvenile probation services. Motion (per Consent Agenda) carried. (#5603)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and the State of Wyoming, Department of Family Services, for intensive support mentoring program for youth in the juvenile court system. Motion (per Consent Agenda) carried. (#5604)

[CA] Employment contract between the Cheyenne Police Department and Alicia 'Lisa' Scholz for suicide and substance abuse prevention program management services (Core Prevention Grant). Motion (per Consent Agenda) carried. (#5605)

[CA] Lease Agreement between the City of Cheyenne and Laura Chalstrom, Beth Chalstrom and Paul Guyot, d/b/a Putt Hutt, for premises used as a miniature golf course in Lions. Motion (per Consent Agenda) carried. (#5606)

[CA] Employment contract between the City of Cheyenne and Jessica Friis for education services at the Paul Smith Children's Village at Cheyenne Botanic. Motion (per Consent Agenda) carried. (#5607)

[CA] Contract between the City of Cheyenne, Transit Division and Wyoming Department of Health, Aging Division to provide supportive services to persons 60 years or older (Title III-B Program Grant) -- referred to Finance Committee.

[CA] Professional Services Agreement/Contract between the Cheyenne Metropolitan Planning Organization and Cambridge Systematics Inc. to provide support for Transportation Safety Plan Implementation -- referred to Finance Committee.

[CA] Professional Services Agreement/Contract between the Cheyenne Metropolitan Planning Organization and Alta Planning + Design to prepare the Cheyenne Metropolitan Planning Organization On Street Bicycle Plan and Greenway Plan Update -- referred to Finance Committee.

[CA] Professional Services Agreement/Contract between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and Felsberg, Holt and Ullevig for South Greeley Highway Corridor 10% Conceptual Plan -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and WINhealth Partners for city employees health insurance coverage -- referred to Finance Committee.

[CA] Contract Modification #2 to Contract #5563 between the City of Cheyenne and JTL Group, Inc.d/b/a Knife River for the construction of the 2009 Cheyenne Transit Program Bus Stop Upgrades Project (Federal Transportation Administration/American Recovery and Reinvestment Act funds). Motion (per Consent Agenda) carried. (#5563)

[CA] Contract Modification to Contract #5477 between the City of Cheyenne and Recco, Inc d/b/a Five-R Co. for fire alarm tamper switch and fire sprinkler repair work at the Transfer Station -- referred to Finance Committee.

[CA] Consideration of Bid #R-4-11 for Surplus Sale of five reproduction McClellan Early 1900's Model saddles from the City of Cheyenne Police. Motion (per Consent Agenda) carried (revenue to City \$1,044.00).

[CA] Consideration of Bid #R-11-11 for furnishing ammunition for the Police Department submitted by BVAC, Inc., Stevensville, MT, and GT Distributors, Inc., Austin, TX. Motion (per Consent Agenda) carried (BVAC, Inc., Stevensville, MT, \$29,424.81; GT Distributors, Inc., Austin, TX, \$14,702.00; Total \$44,126.81).

[CA] Consideration of Bid #R-9-11, for furnishing one new roll-off truck for the Sanitation Division (Solid Waste Equipment Lease/Purchase Fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-10-11, for furnishing two new packer trucks for the Sanitation Division (Solid Waste Equipment Lease/Purchase Fund) -- referred to Finance Committee.

Appointment of Michael Godown to the Tourism Promotion Joint Powers Board, and Tim Thorson to the City-County Health Board. Ms. Broyles moved to approve, seconded by Mr. Brown. Ms. Broyles moved to divide the question to allow for a separate vote on the appointment of Tim Thorson, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment). Ms. Broyles moved to postpone action on the appointment of Mr. Thorson for 2 weeks (to Nov. 8, 2010), seconded by Mr. Collins. Mayor Kaysen advised Mr. Thorson had requested the postponement. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment). Main motion to approve the appointment of Michael Godown carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of Kadi Davis, Ian Dome, Jay Egan-Wright, Karolyn Hopfensperger, Dean Jackson, John Matsen, Bobby McGarry, Monica Mencer, McKinzea Olsen, Jacob Peterson Gary Saylor, Isaiah Sims, Josh Walker, and Sabrina Westover to the Mayor’s Youth Council. Mr. Collins moved to approve, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of the appointment of Gregory Crisp to the Mayor’s Council for People with Disabilities, Frank Harris to the Tourism Promotion Joint Powers Board d/b/a Visit Cheyenne, Ross McKelvey to the Laramie County Community Juvenile Services Joint Powers Board, and Mel Wilkenfield to the Water Conservation Advisory Committee to be confirmed November 8, 2010. Mayor Kaysen announced an administrative correction to the agenda item relative to the proposed appointment of Mr. Wilkenfield, stating the appointment was being withdrawn from the agenda as approval is not required by the governing body. He explained Water Conservation Advisory Committee members are appointed pursuant to recommendation from the Board of Public Utilities with approval by the Mayor.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:47 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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